Table A6. Allocation of decisions and checking responsibilities.

Decision	UK	EU	Finding
DECISION-MAKING			
Whether to use AI at all	Each body applies the test to itself	The deployer decides; some practices are banned (Art. 5)	F4, F5
Whether a tool counts as high-risk	No legal category; each body judges	Provider assesses the conditional Article 6(3) exception, documents its assessment and meets registration duties (Art. 6(4)); authority scrutiny remains.	F5
Approval before use	Internal, plus central spend approvals; ICO consultation where data-protection risk remains	Police biometric identification, authorised independently; EDPS consultation for EU institutions; third-party conformity assessment of some systems before market (Art. 43(1))	F5
Pausing or stopping a tool	Named in guidance rather than binding rules (UK174, UK071, UK268, AI_Insights)	The deployer must suspend use if it has reason to consider a risk (Art. 26(5)); authorities can order withdrawal or recall (Art. 79(2))	F5
DELIVERY			
What the tool is for	Each body	The provider ("intended purpose", Art. 3(12))	F1
What to measure, and the pass mark	Bodies choose purpose-appropriate measures within applicable duties; the Playbook asks for objective measures and UK071 offers illustrative thresholds and testing methods.	The provider (Art. 9(8))	F1
Whether it passes	Each body	Article 43(2) provides internal-control conformity assessment for Annex III points 2–8; other assessment routes apply to specified systems, including applicable sectoral product-law routes (Art. 43(3)).	F1
Stability over repeated runs and setups	Non-binding guidance only	Consistency required by Arts 9(6), 15(1); no repeated-run statistic named there. Art. 15(2) provides for encouraging benchmarks and measurement methods.	F2
Which outputs a person reviews	Use, output risk or uncertainty, and user-reported problems; guidance includes handover and reviewer-capability tests	Risk and context shape oversight under Art. 14; use-specific biometric/text rules and data-protection limits apply in their respective scopes	F3
How a reviewer should judge	Rarely stated, and only in guidance (AI_Insights on benchmarks and uncertain cases; UK071 on when to override)	Fact-checking for published AI text (Art. 50 guidelines); police uses (EU043); overseers of high-risk systems to stay aware of automation bias (Art. 14(4))	F3
COORDINATION			
What the body learns about the tool	ATRS record; model version may be left blank for off-the-shelf tools	Instructions for use declare accuracy levels and metrics (Arts 13, 15(3))	F1, F2
RESOURCES			
Staff, money, time	Announced £10m regulator package; cited £21m NHS deployment example; training, advice, templates and expertise also identified. Actual capacity not measured.	"Adequate", unquantified; guidance	F6
Means for logging and consistency testing	No dedicated funding identified in the cited passages; guidance points to a free evaluation framework (Inspect, UK071)	High-risk logging duties coexist with UK consistency-testing guidance, including repeatability and version-comparison methods (UK071; UK268). Actual resource sufficiency is not established.	F6
ACCOUNTABILITY			
Who is responsible for outputs	The body that uses the tool, even if bought in	The deployer is responsible for its use; under the AI Act the provider answers for the system’s conformity, and the EDPS treats responsibility for an output as depending on its origin	F8
Who it answers to	Public ATRS records and challenge routes coexist with existing legal/regulatory accountability	Supervisor notifications/documentation coexist with public database information and scoped complaint/explanation rights	F8
What follows a failure	Rarely stated; DWP discipline, Ofgem penalties, Equality Act legal action	Member States set the extent of public-body fines; Union institutions have a separate fines regime. Art. 111(2) contains a scoped transition provision for relevant existing high-risk systems, not all public-sector AI.	F7